

24STCV29475 24STCV29475

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV29475 Hearing Date: September 4, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV29475

DELIA

MERCEDES CARDONA, et al. vs K3 HOLDINGS LLC, A DELAWARE LIMITED LIABILITY
COMPANY, et al.

September

4, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO QUASH DEFENDANTS' MOTION TO QUASH THIRD-PARTY BUSINESS
RECORDS SUBPOENA TO FARMERS GROUP, INC.

DEFENDANTS' MOTION

TO QUASH DEFENDANTS' MOTION TO QUASH THIRD-PARTY BUSINESS RECORDS SUBPOENA TO
COLLIERS INTERNATIONAL GREATER LOS ANGELES, INC. DEFENDANTS' MOTION TO QUASH DEFENDANTS'
MOTION TO
QUASH THIRD-PARTY BUSINESS RECORDS SUBPOENA TO MYNHD, INC. DEFENDANTS' MOTION TO QUASH
DEFENDANTS' MOTION TO
QUASH THIRD-PARTY BUSINESS RECORDS SUBPOENA TO WILSHIRE ESCROW COMPANY.

RULING:

All four Motions to Quash
as to all items remaining in dispute are granted.

The Court quashes the
subpoenas issued to FARMERS GROUP, INC., COLLIERS INTERNATIONAL GREATER LOS
ANGELES, INC., MYNHD, INC., and WILSHIRE ESCROW COMPANY and excuses their
subpoena compliance as to all items remaining in dispute.

The Court will enforce as
binding (1) Plaintiffs' and Defendants' Stipulation filed on August 28 and
August 31, 2026, and (2) their meeting and conferring, agreements and
concessions that have resolved issues, as reported in "Defendants' Supplemental
Brief in Support of Their Motions to Quash Plaintiffs' Third-Party Subpoenas" filed
that date and Plaintiffs' Opposition filed July 9, 2026.

Additionally, the Court
denies Plaintiffs' and Defendants' respective requests for monetary sanctions,
by finding substantial justification for some positions that led to a partially
successful result for each side.

The
Court incorporates by reference the Minutes entered on July 31, 2026.

Defendant
to give notice.

REASONING:

The
Court had continued the four Motions, per the July 31, 2026 and August 5, 2026
Minute Orders, for counsel to meet and confer, considering that the Oppositions

and Replies had proposed greatly narrowed subpoenas, such that informal resolution seemed probable.

Although

some “fishing expeditions” are permissible in discovery, there are limits, such as to insufficiently identified information, and undue burden of providing information as compared to the value of the information. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224–225.)

“When

discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.)

“Mere

speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice” for showing direct relevance as to private information sought in discovery. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1017-1020 [directing trial court to grant motion to quash as to discovery request that was not narrowly drawn to enable the court to evaluate the appropriate extent of disclosure]. Cf. *Bd. of Registered Nursing v. Superior Court* (2021) 59 Cal.App. 5th 1011, 1038 [“defendants have not shown that these broad categories are reasonably calculated to lead to the discovery of admissible evidence. Moreover, even if these categories do contain some records that would be discoverable, their probative value is vastly outweighed by the privileged and private nature of the other records swept up in the production.”].) Absent showings of direct relevance, compelling need, and unavailability of alternative sources, a trial court only could find that a privacy interest prevails. (*Ombudsman Services of No. Cal. v. Superior Court* (2007) 154 Cal.App.4th 1233, 1251, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

Financial

discovery sometimes has been found relevant as to alter ego allegations. (E.g., *Rawnsley v. Superior Court* (1986) 183 Cal.App.3d 86, 91 [party alleging alter ego theories was entitled to access defendants' financial records where there was a lack of alternatives].)

Courts

have limited discretion with regard to sensitive commercial information over

objections thereto. *Fireman's Fund Ins. Co. v. Superior Court* (1991) 233 Cal.App.3d 1138, 1141 (court abused discretion in requiring responses that may contain sensitive commercial information, without first reviewing them in camera to ascertain relevance, and whether sensitive matter should be redacted].)

Here,

Plaintiffs' broadly worded subpoenas request documents going well beyond the typical habitability allegations contained in the Complaint and adding a factual theory of Defendants' preconceived business strategy to force tenants out. (Complaint, ¶ 34; Opposition, 3:10.)

The

alleged claims require no allegation and proof of Defendants' preconceived intent. For instance, the elements of Breach of the Implied Warranty of Habitability are: 1) Materially defective condition affecting habitability; 2) defective condition was unknown to the tenant at time of occupancy; 3) effect on habitability of the defective condition was not apparent on reasonable inspection; 4) notice given to landlord within a reasonable time after the tenant discovered, or should have discovered, breach; and 5) damages. (E.g., *Quevedo v. Braga* (1977) 72 Cal.App.3d Supp. 1, 7-8, overruled on other grounds by *Knight v. Hallsthammar* (1981) 29 Cal.3d 46, 53, 55.) As another example, the elements of Retaliatory Eviction are: 1) Lessor acts to, or threatens to, bring an action to evict the tenant; and 2) because the tenant exercised a cognizable right, including complaining to an appropriate agency regarding the tenantability of a dwelling exercising any right under the chapter. (*Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1493; Civ. Code, § 1942.5, subds. (a), (c).)

Additionally,

Plaintiffs seek to prove reasonable notice to Defendants based upon preacquisition knowledge of defective conditions. (Opposition, 3:9.) But the above-referenced case law addresses notice after the tenant discovered or should have discovered breach. In many other cases that have been before this Court, tenants and government citations provided such post-acquisition knowledge of defective conditions. This case is the first encountered in this Court where complainants seek lessors' property purchase records to show preacquisition notice. Assuming that type of proof relates to a material claim element, Plaintiffs have not shown knowledge of the requested content in order to show that each item of subpoenaed information would be relevant to the issues being pursued.

In summary, the subpoenas involve unacceptably broad “fishing expeditions” for unknown information that excessively intrudes upon corporate financial privacy and sensitive commercial information, without sufficient justification for the unusually extensive efforts involved were full subpoena compliance to be required.

Additionally, a party to a stipulation is conclusively estopped from taking a position contrary to the stipulation, in the same or related litigation. (*Palmer v. City of Oakland* (1978) 86 Cal.App.3d 39, 44.) Courts may accept representations of attorneys as being the equivalent of a binding stipulation. (*Roman v. Liberty University, Inc.* (2008) 162 Cal.App.4th 670, 683; *Fassberg Constr. Co. v. Hous. Auth. of City of Los Angeles* (2007) 152 Cal.App.4th 720, 752.) “Whenever a party has, by his own statement or conduct, intentionally and deliberately led another to believe a particular thing true and to act upon such belief, he is not, in any litigation arising out of such statement or conduct, permitted to contradict it.” (*Padron v. Osoy* (2025) 110 Cal.App.5th 677, 691; Evid. Code § 623.)

Therefore, the Court will quash all four subpoenas, but enforce the meet-and-confer agreements, resolutions and concessions, as expressed in the above-referenced filings, and deny sanctions requests considering substantial justification for some positions of each side.